

25STCP03004 25STCP03004

County: los-angeles

Division: Civil Law and Motion

Department: 836

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C836%2C08%2F11%2F2026

Source SHA-256: 2f4cd992407ae30b31c0167194376c363124e52ffa9b67563ea55c45badae7cc

Case Number: 25STCP03004 Hearing Date: August 11, 2026 Dept: 836

BRIAN YUN KIM,

Petitioner,

Case No.

25STCP03004

vs.

DEPARTMENT OF MOTOR VEHICLES, an agency of the
State of California by and through its DIRECTOR STEVE GORDON,

Respondent.

[TENTATIVE] RULING ON VERIFIED PETITION FOR WRIT
OF MANDATE

Dept. 836 (Hon. Curtis A. Kin)

Petitioner

Brian Yun Kim petitions for a writ of mandate directing respondent Department of Motor Vehicles ("Department" or "DMV") to set aside the order suspending petitioner's driving privileges. For the reasons stated below, the Petition is DENIED.

I. BACKGROUND

A.

Petitioner's

Arrest

On October 19, 2024, at around

1:06 a.m., California Highway Patrol ("CHP") Officers Ortiz and Welch were traveling along the US-101 Highway, north of Lankershim Avenue in the No. 2 Lane when they observed petitioner's vehicle drift left into the No. 1 Lane. (AR 9, 16.) Officer Ortiz further observed petitioner's vehicle brake and drift to the right into the No. 3 Lane. (AR 9, 16.) The MVARs video also captured petitioner's vehicle weaving in the No. 2 Lane before the officers initiated an enforcement stop. (MVARs at 01:07:10 – 01:07:25.) Officer Welch instructed petitioner to exit the freeway using the patrol vehicle's public address system, but, because petitioner was slow to comply with this order, Officer Welch had to repeat the instructions.^[1]

(AR 9, 16; MVARs at 01:07:25 – 01:11:15.)

Upon making contact with

petitioner, Officer Ortiz observed the strong odor of alcohol emitting from petitioner's breath, petitioner's red, watery eyes, and his slurred speech. (AR 7, 14, 16.) When questioned, petitioner admitted to having consumed alcohol earlier in the evening. (See AR 16.) During the administration of the Field Sobriety Tests, petitioner displayed impairment and was unable to complete them as explained and demonstrated. (AR 14, 15, 16.) Officer Ortiz requested that petitioner submit to a Preliminary Alcohol Screening test, but petitioner declined to submit to that test. (AR 14, 15.) Due to petitioner's objective signs of intoxication, his poor driving, his poor performance during the Field Sobriety Tests, and his admission of drinking, Officer Ortiz determined that petitioner had operated a motor vehicle under the influence of alcohol and that it would be unsafe for petitioner to continue to operate the vehicle, resulting in Ortiz placing petitioner under arrest at 1:35 a.m. for violating Vehicle Code § 23152(a). (AR 16-17)

While still at the scene,

Officer Ortiz advised petitioner of the requirement to submit to a chemical test but did not advise him of the potential consequences of not submitting at that point. (AR 17; MVARs at 01:40:20 – 01:41:40.) Petitioner initially agreed to submit to a blood test (MVARs at 01:41:40 – 01:41:45.) Immediately after agreeing, petitioner asked about the difference between the blood and breath test; the differences were explained to him, and the officers informed

petitioner that he could think about his choice. (MVARs at 01:40:45 – 01:43:00.) When re-questioned near 2 a.m., Officer Welch indicated that a refusal to agree to a chemical test would require them to procure a warrant, and, after being informed that a chemical test was required, petitioner expressed a willingness to submit to a blood test. (MVARs at 01:58:00 – 02:00:45.) When informed that he would need to sign a medical consent form before blood could be drawn, petitioner expressed dissatisfaction and refused to comply. (MVARs at 02:00:45 – 02:01:10.) Specifically, petitioner stated that he was “not going to submit to anything until I get my lawyer.” (MVARs at 02:01:00 – 02:01:10.) Officer Welch advised petitioner that he did not have a right to talk with an attorney and informed him of the consequences for refusing to submit to a chemical test. (MVARs at 02:01:10 – 02:01:40.) Thereafter, the officers transported petitioner to CHP’s Central LA station. (AR 17.)

After arriving at the station, an officer read to petitioner the Chemical Test Admonition at around 2:23 a.m. (AR 8, 17; MVARs at 02:23:50 – 02:26:48.) After being read the admonishment, petitioner remained quiet when asked if he would take a breath or blood chemical test, which resulted in the officers informing him that silence amounted to a refusal. (AR 8, 17; MVARs at 02:26:48 – 02:27:10.) Based on petitioner’s decision to remain silent, Officer Ortiz submitted an affidavit in support of a search warrant for a non-consensual blood draw, which was approved. (AR 17-18; MVARs at 02:27:10 – 02:27:30.) Officer Ortiz then transported petitioner to East L.A. Doctor’s Hospital at around 4:15 a.m., where he observed a medical professional draw blood from petitioner’s arm before recording the blood draw and booking it into evidence (AR 17, 19-21.)

On October 19, 2024, petitioner was issued a DMV DS-367 form, which indicated that his license was being suspended for Chemical Test Refusal. (AR 11.)

B.
Administrative
Per Se Hearing

Prior to the Administrative Per Se (“APS”) hearing, on October 29, 2024, respondent requested records from the CHP, namely, the DMV DS-367 form, any chemical test results, and the arrest report (AR 113). On November 18, 2024, petitioner subpoenaed audio and video records from the CHP. (AR 70-74.) (NAR 131.)

On

February 6, 2025, an APS Hearing was held in this matter before DMV Hearing Officer Dennis Haley. (AR 48.) At the start of the APS Hearing, the hearing officer indicated that he would be acting as a neutral factfinder and that he was prohibited from acting as an advocate for the DMV. (AR 48-49.) The hearing officer then read the issues of the hearing into the record.[2] (AR 49-50) Petitioner was not present for the hearing but was represented by counsel. (AR 49.)

The hearing officer admitted three exhibits into evidence: (1) Exhibit #1 [Age 21 & Older Officer's Statement (DS-367)] (AR 7-12, 50); (2) Exhibit # 2 [Driving Under the Influence Arrest and Investigation Report by Officer Ortiz] (AR 13-26, 50); and (3) Exhibit #3 [petitioner's driving record] (AR 41-44, 50). Petitioner did not object to the admission of these exhibits. (AR 50.) Petitioner's counsel requested to admit the MVARs video into the record. (AR 50.) She sought to do so because she argued that the recording showed that petitioner had expressed a willingness to submit to a blood test on two separate instances. (AR 53-54, 56-57.) Because the hearing officer did not have a copy of the video, he indicated that he would neither move the recording into evidence nor accept this argument unless he received a copy of the recording within five business days. (AR 54.) Petitioner's counsel provided a digital copy of the recording via DropBox to the hearing officer, and the hearing officer instructed petitioner to send a physical disc to the DMV's Oxnard office. (AR 59-61, 63-64.)

C.

The

Decision

On February 11, 2025, the hearing officer issued his Notification of Findings and Decision ("Decision"), suspending petitioner's driver license for refusing to submit to a chemical test. (AR 3-5.) In the Decision, the hearing officer first found that Officer Ortiz[3] lawfully detained petitioner because there was a reasonable articulable suspicion to detain petitioner based on the observation of petitioner's behavior, which consisted of weaving while driving. (AR 3.) The Decision also found that petitioner was lawfully arrested based on petitioner's objective signs of intoxication (slurred speech, red and/or water eyes, odor of alcohol, and unsteady

gait), as well as petitioner's unsatisfactory performance on several field sobriety tests. (AR 3-4.)

The

Decision also found that petitioner was properly advised that his driving privileges would be suspended if he refused or failed to complete one of the required chemical tests. (AR 4.) With respect to the argument by petitioner's counsel that the MVARs video footage shows that petitioner had expressed a willingness to submit to a blood test on two separate occasions, the Decision concluded that this was not the case. (AR 4.) As for the first instance, the Decision indicated that petitioner's initial indication of willingness was not formalized beyond his initial statement. As for the second instance, the Decision reasoned that any willingness was contradicted by petitioner's refusal to sign any consent form without his attorney. (AR 4.) The Decision further points to the DS-367 form that reflects petitioner's documented silence when asked to submit to a chemical test. (AR 4.) Thus, the Decision contained the determination that petitioner refused to submit to a chemical test in that he did not demonstrate "a consistent willingness to comply with chemical testing procedures" because his "initial verbal indications of compliance were not sustained in subsequent interactions." (AR 4.)

Based

on these findings, the Department imposed a one-year license suspension, effective February 24, 2025, through February 23, 2026.[4]
(AR 2-3, 5.)

D.

The

Petition for Writ of Mandamus

On March 11, 2025, petitioner filed his Verified Petition for Writ of Mandate in the Kern County Superior Court. On August 8, 2025, the case was transferred to the Los Angeles County Superior Court.

On November 14, 2025, respondent filed its Answer. On March 13, 2026, petitioner filed his opening brief. On April 10, 2026, respondent filed its brief in opposition. On April 27, 2026, petitioner filed his reply brief. The Court has received an electronic copy of the administrative record and an electronic copy of the MVARs recording.

II. DISCUSSION

A.

Standard of Review

Under CCP § 1094.5(b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (CCP § 1094.5(b).) “[T]he party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (Fukuda v. City of Angels (1999) 20 Cal.4th 805, 817; see also Bixby v. Pierno (1971) 4 Cal.3d 130, 139.)

When a driver petitions for a writ of mandate following an order suspending his driver's license, the trial court is required to determine, based on its independent judgment, whether the weight of the evidence supports the administrative decision. (Lake v. Reed (1997) 16 Cal.4th 448, 456.) Under the independent judgment test, “the trial court not only examines the administrative record for errors of law, but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo.” (Bixby, 4 Cal.3d at 143.) The Court must draw its own reasonable inferences from the evidence and make its own credibility determinations. (Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners (2003) 107 Cal.App.4th 860, 868.) However, “[i]n exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (Fukuda, 20 Cal.4th at 817 [internal quotations omitted].)

B.

The

Claim that the DMV Exceeded Its Authority in Failing to Set Aside the License Suspension was Waived

Petitioner

argues that the DMV exceeded its authority in obtaining arrest records and evidence against petitioner after petitioner had made a request for an APS hearing, because the Vehicle Code required the arresting officer to immediately forward the information to the DMV.

Thus, reasons petitioner, the suspension should have been set aside because the DMV had no evidence in its possession to support the suspension at the time petitioner had requested an APS Hearing. (Pet. Br. at 12-15.) Petitioner made no such argument during the APS Hearing and has accordingly waived it here. (See AR 49-65.)

“Before

seeking judicial review a party must show that he has made a full presentation to the administrative agency upon all issues of the case and at all prescribed stages of the administrative proceedings.” (Edgren v. Regents of University of California (1984) 158 Cal.App.3d 515, 520.) Because this argument was not first raised before the hearing officer, the Court finds that it was waived. In any event, even if petitioner had preserved this argument, it lacks merit. Petitioner cites no legal authority for the novel proposition he advances here. Indeed, in failing to address this argument on reply or respond to the DMV’s arguments in opposition, petitioner effectively concedes it is without merit.

C.

The

Weight of the Evidence Supports a Finding that Petitioner was Lawfully Detained

Petitioner also argues that the weight of the evidence does not support a finding that he was lawfully detained.[5] (Pet. Br. at 15-17.) The Court disagrees.

“[U]nless a person is ‘lawfully arrested’. . . , he or she is not subject to license suspension or revocation” for failing to submit to a chemical test per Vehicle Code §§ 23612 and 13353. (Mercer v. Department of Motor Vehicles (1991) 53 Cal. 3d 753, 760; Gikas v. Zolin (1993) 6 Cal. 4th 841, 847-848 (1993) [“[F]or the DMV to suspend the driver’s license, the underlying arrest must have been lawful.”]; Veh. Code § 23612(a)(1)(C) [“The testing shall be incidental to a lawful arrest. . . .”].) In order to conduct a lawful investigatory stop for the purpose of detaining a

driver, an officer must have “reasonable suspicion that the driver has violated the law.” (People v. Wells (2006) 38 Cal.4th 1078, 1082.) Reasonable suspicion is “a particularized and objective basis for suspecting the particular person stopped of criminal activity,” and it “requires specific, articulable facts which, together with objective and reasonable inferences, form a basis for suspecting that a particular person is engaged in criminal conduct.” (People v. White (2003) 107 Cal.App.4th 636, 641.) The standard for reasonable suspicion is less demanding than what is required to establish probable cause, but the circumstances must be reasonably consistent with criminal activity, not on mere curiosity, rumor, or hunch. (Arburn v. Department of Motor Vehicles (2007) 151 Cal.App.4th 1480, 1484.)

“Weaving within a lane is a widely recognized characteristic of an intoxicated driver and recognizing a weaving driver is undoubtedly within the province of even the most junior officer.” (Arburn, 151 Cal.App.4th at 1485.) Multiple California courts have determined that:

“weaving” within a lane provides sufficient cause to conduct an investigatory stop. (See People v. Bracken (2000) 83 Cal.App.4th Supp. 1, 3–4 [weaving within lane for one-half mile]; People v. Perez (1985) 175 Cal.App.3d Supp. 8, 10–11 [“‘pronounced weaving’ within the lane” for three-quarters of a mile; citing additional cases holding that weaving from one lane to another justifies an investigatory stop]; People v. Perkins (1981) 126 Cal.App.3d Supp. 12, 14 [driving 20 miles per hour under speed limit and “weaving abruptly from one side of [the] lane to the other”]; see also People v. Russell (2000) 81 Cal.App.4th 96, 104 [concluding summarily that fact that defendant was “drifting around in his lane” justified an investigatory stop].)

(Ibid.)

Here, at around 1:06 a.m., on October 19, 2024, CHP Officers Ortiz and Welch observed petitioner's vehicle drifting into the No. 1 Lane from the No. 2 Lane before overcorrecting by braking and drifting into the No. 3 Lane along the US-101 Highway. (AR 9, 16; MVARs at 01:07:05-01:07:15.) Thereafter, petitioner's vehicle can be observed weaving within the No. 2 Lane in a pronounced fashion by ping-ponging between the lane's line boundaries before the officers initiate an enforcement stop.[6]

(MVARs at 01:07:15 – 01:07:25.) Petitioner also denied that there was anything mechanically wrong with his vehicle. (AR 14.) Given petitioner's repeated weaving movements occurring over a period of more than 20 seconds while traveling on the freeway after 1 a.m., it was reasonable for the officers to suspect that petitioner was impaired while driving.[7]

Indeed, the officers had a duty to investigate what was causing petitioner's vehicle to weave and whether his driving posed a safety risk. (Arburn, 151 Cal.App.4th at 1486; see also *Brierton v. Department of Motor Vehicles* (2005) 130 Cal.App.4th 499, 509.)

Moreover, the Court is unpersuaded by petitioner's attempts to distinguish the present case from other cases in which courts have found that weaving supported an officer's reasonable suspicion to conduct a traffic stop. (See Reply at 7-9.) Whatever differences there may be between the facts of those cases and this one is immaterial,[8] as petitioner's weaving on the road provided ample reasonable suspicion in this case for law enforcement to stop him and investigate. Accordingly, the Court finds in its independent judgment that the weight of the evidence supports a finding that petitioner was lawfully detained.

D.

The

Weight of the Evidence Supports a Finding that Petitioner Refused a Chemical Test After Being Arrested

Petitioner argues that he consented to a blood test and that refusing to sign a blood draw consent form did not amount to a chemical test refusal. (Pet. Br. at 18-20.) The Court disagrees.

"The law of implied consent mandates that an arrestee is required to submit to and complete one of the three tests upon their first having been offered to him by an arresting officer." (*Espinoza v. Shiomoto* (2017) 10 Cal. App. 5th 85, 112.) "Consent which is not clear and unambiguous may be deemed a refusal. The determinative factor as to whether there is a refusal is not the arrestee's subjective state of mind, but rather the objective, fair meaning to be distilled from his words and conduct." (*Carrey v. Department of Motor Vehicles* (1986) 183 Cal.App.3d 1265, 1270.) Before a license may be

suspended, a driver must be “notified of the consequences of refusal to submit.” (Hughey v. Department of Motor Vehicles (1991) 235 Cal.App.3d 752, 757-758; see also Munro v. Department of Motor Vehicles (2018) 21 Cal.App.5th 41, 50-51 [“the Vehicle Code is clear that an arresting officer must instruct a suspected drunk driver of the consequences of refusing chemical testing . . . , and case law has consistently required arresting officers to at least attempt to provide that mandatory admonition even to uncooperative suspects.”].)

Petitioner contends that he agreed to submit to a blood test when first asked (Pet. Br. at 18:13-16), but the MVARs recording reveals that petitioner did not unambiguously agree to submit to that test. Immediately after stating this, petitioner asked about the difference between the breath and blood chemical test; the differences were explained to him, and the officers gave petitioner an opportunity to think about his decision before agreeing. (MVARs at 01:40:45 – 01:43:00.) Petitioner’s consent to the required test was thus not clear and unambiguous.

Next, petitioner asserts that his reaffirmation to submit to a blood test should qualify as consent and that his refusal to sign a consent form should not undermine that reaffirmation. (Pet. Br. at 18:16-22, 19:9-20:4; see MVARs at 01:57:58 – 02:02:48.) However, petitioner’s indication that he would not sign the blood draw consent form precludes his statement that he would take a blood test from constituting clear and unambiguous consent. (Carrey, 183 Cal.App.3d at 1270.) As held in Carrey, a driver’s “refusal to sign the medical consent form was the pragmatic equivalent of a refusal to consent to the procedure involved,” and a driver’s “purported willingness to take the blood test was meaningless in absence of his signature on the form.” (Id. at 1271.) While the Court finds that petitioner did not clearly and unambiguously consent to the required chemical test at this point, the Court acknowledges that petitioner was not sufficiently advised of the consequences of his refusal because the officers had not recited the entire Chemical Test Admonition at this juncture. Thus, petitioner’s refusal at that moment did not trigger a license suspension.

However, the officers

eventually read the Chemical Test Admonition to petitioner at the station, at which point petitioner was fully warned of the consequences of his refusal and asked whether he would submit to either a breath test or a blood test. (AR 8, 17; MVARs at 02:23:50 – 02:27:30.) Petitioner remained silent when asked whether he would submit to either test, which constituted a refusal to submit to a chemical test within the meaning of Vehicle Code § 23612.

Accordingly, the Court concludes in its independent judgment that the weight of the evidence supports the finding that petitioner refused to submit to a chemical test after being lawfully arrested for driving under the influence of alcohol and fully informed of the consequences of refusing to do so.

E.

Petitioner

was Sufficiently Advised that the Right to an Attorney Did Not Apply to the Chemical Test

Petitioner

also argues that the officers failed to sufficiently explain to him that he did not have a right to speak with a lawyer before submitting to a chemical test. (Pet. Br. at 20-21.) At the scene, the officer informed petitioner that he did not have a right to speak to an attorney before submitting to a chemical test and that, by refusing, the officers would proceed with the test after procuring a search warrant regardless of petitioner's position. (MVARs at 2:00:48 – 2:01:48.) At the station, the officers also advised petitioner that staying silent amounted to a refusal and read him the Chemical Test Admonition, which indicated he did not have a right to consult with an attorney in connection with taking the required chemical test. (MVARs at 02:23:43 – 2:27:53.) All of these statements sufficiently dispel any possible confusion petitioner could claim over whether he was properly informed about his right to consult with an attorney. (See Goodman v. Orr (1971) 19 Cal.App.3d 845, 855 [“The rule only requires that the officer erase any possible confusion caused the allegedly drunken laymen by the officer's own statements.”].)

Accordingly,

the record shows that petitioner was clearly and fully informed about his right

to consult an attorney and his obligation to submit to a chemical test.

III. CONCLUSION

The petition for writ of mandate is DENIED.

Pursuant to Local Rule 3.231(n), respondent Department of Motor Vehicles shall prepare, serve, and ultimately file a proposed judgment.

[1] As observed by Officer Ortiz, petitioner first moved his vehicle into the No. 1 lane and, following a second instruction, petitioner moved his vehicle to the right and stopped on the shoulder of the highway. After a third instruction, petitioner exited the freeway. (AR 9, 16; MVARs at 1:07:25-1:11:15.)

[2] The issues were as follows: (1) “did the peace officer have reasonable cause to believe that [petitioner] was driving a motor vehicle in violation of section 23152 or 23153 of the California Vehicle Code”; (2) “was [petitioner] lawfully arrested”; (3) “was [petitioner] told that his driving privilege would be suspended or revoked for one, two, or three years if he refused to submit to or failed to complete a chemical test”; and (4) “did [petitioner] refuse or fail to complete a chemical test after being requested to do so by a peace officer.” (AR 49:15-50:1.)

[3] The Decision incorrectly refers to the arresting officer as “Officer Ferrera” and states that petitioner was detained at 6:30 p.m. (AR 3-4.)

[4] The suspension was stayed pending resolution of the instant petition pursuant to petitioner’s unopposed ex parte application to stay the order of suspension. (See 8/8/25 Order Staying Suspension.)

[5] Respondent argues that this argument has also been waived (Opp. at 15:8-12), but the Court does not find that is the case. Per Vehicle Code § 13557(b)(1)(B), respondent has the burden of proving by the preponderance of the evidence that the arrest was lawful. (Gikas v. Zolin (1993) 6 Cal.4th 841, 847-848.)

At the APS Hearing (AR 49) and in the Decision (AR 3), it is clear that the lawfulness of petitioner’s arrest and the probable cause to arrest and detain him was at issue. Under CCP

1094.5, petitioner may challenge the evidentiary basis for such finding against him.

[6] Petitioner characterizes this weaving as mere movements within one's lane (Pet. Br. at 16:16-17:8 [citing *U.S. v. Colin* (9th Cir 2002) 314 F.3d 439]; Reply at 8:1-4), but the record is to the contrary. The MVARs and Officer Ortiz's description reveal that petitioner was not merely drifting within a lane. Rather, petitioner twice crosses into the other lanes without signaling. (AR 16; MVARs at 01:07:05-01:07:15.) Further, these facts are distinguishable from *Colin*, where the court found the officer did not have reasonable suspicion based on the driver's conduct of separately touching the fog line and the solid yellow-painted line for several seconds before or after executing a lane change while using proper signaling. (*Colin*, 314 F.3d at 444.)

[7] Petitioner's reliance on *United States v. Jimenez-Medina* (9th Cir. 1999) 173 F.3d 752, 755 and *United States v. Rodriguez* (9th Cir. 1992) 976 F.2d 592, 595-96 is entirely misplaced. Petitioner suggests these cases stand for the proposition that movement within one's lane is not sufficient to support an officer's reasonable suspicions. (Pet. Br. at 17:8-13.) However, those cases involved alien smuggling (not driving under the influence), and the Court determined that movements within one's lane did not support the inference of that particular criminal activity, i.e., alien smuggling.

[8] For example, while this case did not involve a near collision with a curb (or any other object or driver) as in *Arburn* (see Reply at 7:12-18), the lack of any near collision does not diminish the potential safety risk that an impaired driver may pose to other drivers, particularly where, as here, the MVARs show many other vehicles and drivers were on the freeway with petitioner.